No. 2023 - 2024

IN THE

SUPREME COURT OF THE UNITED STATES

WILLIAM DENOLF,
PETITIONER,

V.

STATE OF OLYMPUS,
RESPONDENT.

ON WRIT OF CERTIORARI TO THE SUPREME COURT OF THE STATE OF OLYMPUS

BRIEF FOR PETITIONER

QUESTIONS PRESENTED FOR REVIEW

1. Whether the accessing of Petitioner's phone violates his Fifth Amendment rights under the United States Constitution.

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CONSTITUTIONAL AND STATUTORY PROVISIONS

This case concerns the State of Olympus' enactment of Olympus Public Law 417; *See Appendix I.* Petitioner challenges his conviction for involuntary manslaughter, under Olympus Public Law 417, on the grounds that it violates his Fifth Amendment rights under the U.S. Constitution.

Petitioner challenges his conviction on the grounds that it violates his Fifth Amendment rights. The Fifth Amendment states:

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation. U.S. Const. amend. V.

STATEMENT OF THE CASE

I Olympus Public Law 417

On May 20, 2021, Bobbi Bronner was found deceased; her manner of death was determined to be suicide. R. 2. Not long after Bronner's suicide, District Attorney Harmon Gill charged Petitioner William DeNolf with involuntary manslaughter based on text messages he had sent to the deceased. *Id.* at 4. Since the State of Olympus' legislature has chosen not to criminalize encouraging, assisting, nor committing suicide, DeNolf was charged under the State of Olympus' involuntary manslaughter statute, Olympus Public Law 417. *Id.* at 2.

Olympus Public Law 417 prohibits the act of involuntary manslaughter, which is defined as "causing the death of an individual 'by an act which constitutes such a disregard of probable harmful consequences to another as to amount to wanton or reckless conduct'." *Id.* In order for one to be convicted under Olympus Public Law 417, prosecutors must first prove "proximate cause", which is defined as "a cause in which in the natural and continuous sequence produces the death and without which the death would not have occurred." *Id.* Olympus Public Law 417 also necessitates a minimum mens rea requirement of recklessness, which is established by "either the commission of a purposeful act or by a purposeful omission where there is a duty to act." *Id.*

II History of Bronner and DeNolf

For years leading up to her death, Bronner struggled with mental illness, and therefore, was under the care of a state-licensed therapist and psychologist. *Id.* Bronner suffered from diagnosed depression, as well as a history of suicidal ideation and even an attempt

on her life in 2016. *Id.* Prior to her death, Bronner also had been in a romantic relationship with DeNolf. *Id.* at 3. Following her death, during the course of the police's investigation of DeNolf's private affairs, a couple witnesses had alleged that DeNolf was "very controlling" in his relationship with Bronner, perhaps rising to the le. *Id.* However, the witnesses also indicated that there was no evidence of physical abuse; friends and other witnesses reported never seeing DeNolf physically hurt Bronner. *Id.* The police also learned from witnesses that DeNolf and Bronner frequently messaged each other via a digital platform known as "ChatApp". *Id.*

III ChatApp Application

Throughout the relationship, DeNolf and Bronner used a photo-sharing and chat messaging application called "ChatApp" as one of their primary means of communication, exchanging over 47,000 messages in the two months leading up to Bronner's death. *Id.* at 3. The count of messages exchanged was left on Bronner's device. Out of the 47,000 messages exchanged between DeNolf and Bronner, only three exchanges were selected to constitute the basis of DeNolf's conviction. *Id*. at 15-18. It is important to note that the Superior Court of Olympus characterized these texts as "encouraging suicide," specifically. *Id*. at 4. DeNolf testified under oath that there was no criminal intent behind his messages; he alleged that he was "merely helping Bronner to visualize her own death" and "thereby not take her life." *Id*. at 3. It is also important to note that DeNolf's texts sent on February 25, 2021 discuss suicide in reference to "The Waiting is the Hardest Part" by Tom Petty, "Death is Not the End" by Bob Dylan, "Alice's Restaurant Massacree" by Arlo Guthrie, and "Mony Mony" by Billy Idol. *Id.* at 15-16.

"ChatApp" messages self-erase, with no way to recover them, unless a user keeps the application running. *Id*. at 3. Bronner had turned off the application, erasing all the messages, but DeNolf never turned the application off, allowing the 47,000 messages to be accessible only through DeNolf's phone. *Id*. When law enforcement seized these messages, they discovered that DeNolf had sent messages that the State of Olympus interpreted as "encouraging suicide". *Id*. The messages identified exclusively via "ChatApp" led to DeNolf's conviction. *Id*.

IV Biometric Technology

Bronner used a phone with no biometric capabilities, whereas DeNolf used a modern X-Phone that contained biometric capabilities. R. 3. This X-Phone is equipped with the latest technology, Face ID, a security system that functions by mapping the geometry of the face of the user to unlock the device regardless of their intention. *Id.* at 4. This means that a glance at the camera can unlock the user's phone. The X-Phone phone was advertised as "some of the most sophisticated technologies to ensure that customers' devices are protected from the security risks that accompany this technology, such as false matches and fraud". *Id.* The phone can be switched to use number and letter passcodes instead of biometrics. *Id.* Additionally, there are protective measures in place, such as only being able to register a user's face by creating a passcode for the device first, having to enter the password if the phone hadn't been unlocked for more than 48 hours, and having to use the password if there are multiple failed attempts of the Face ID or if the phone restarts. *Id.* This X-Phone is not hackable and not accessible other than by passwords or biometrics set by the user. DeNolf purchased the X-Phone mainly because of the security feature inherent in the X-Phone. *Id.*

IV DeNolf's Conviction

On May 21st of 2021, a day after Bronner's death, Olympus detectives asked Andrea Sommerville, who identified herself as DeNolf's girlfriend, about DeNolf's whereabouts. R. 4. Somerville informed the detectives that DeNolf was in the dorm lounge. The lounge had no restrictions on access. *Id.* The detectives found DeNolf asleep in the lounge and also found a phone with a custom case of the text "Visualize Death" wrapped around a wizard's hat along with stickers that said "Keep Out," "Private." and "No Trespassing". *Id.* The detectives identified a matching "Visualize Death" wrapped around a wizard's hat tattoo on DeNolf's left forearm. *Id.* The detectives, with the objective of identifying the owner of the phone, put the phone to DeNolf's face while he was asleep. *Id.* His face registered and unlocked the phone through biometrics, opening it to the "ChatApp" application, thereby revealing the several messages that appeared to encourage Bronner to kill herself. *Id.* DeNolf, throughout this process, was asleep and unconscious. *Id.* After this search, DeNolf was arrested. *Id.* Olympus State Superior Court denied DeNolf's motion to suppress the evidence from the phone because it did not involve words or thoughts. *id* at 1. The messages were admitted into trial to which a jury returned a guilty verdict on the charge of involuntary manslaughter. *Id.* He was sentenced to five years in an Olympus state correctional facility. DeNolf appeals on the grounds of a violation of his Fifth Amendment rights. *Id.*

SUMMARY OF ARGUMENT

In compelling DeNolf to produce his facial biometric passkey and unlock his phone, Respondent violated his Fifth Amendment rights. DeNolf's production of his facial biometrics which unlocked his phone satisfies the *Fisher* test by being compelled, incriminating, and testimonial. *Fisher v. United States,* 425 U.S. 391, 401 (1975).

First, the unlocking was compelled when law enforcement forced DeNolf to produce his facial biometric passkey while unconscious to unlock his phone. This deprived him of the ability to exercise a choice, violating the Fifth Amendment's protection against self-incrimination. *Schmerber v. California*, 384 U.S.757, 762 (1966).

Second, the production was incriminating as it indirectly revealed incriminating evidence used in DeNolf's conviction. By accessing the messages on the phone through DeNolf's production of his facial biometric passkey, the government obtained evidence that served as a "link in the chain" leading to prosecution. *Hoffman v. United States*, 341 U.S. 479, 486, 95 L. Ed. 1118, 71 S. Ct. 814 (1951), *as cited in Doe v. United States*, 487 U.S. 201, 210 (1988).

Third, the act was testimonial because it communicated new information unknown to the government and because the investigation was fully dependent on DeNolf. Unlocking the phone via the facial biometric passkey confirmed ownership, control, and authenticity of the phone and its contents—information that was not independently verifiable by the government. Unlike prior cases where evidence merely confirmed facts already known, this act communicated new incriminating facts from DeNolf himself, making it testimonial.

Finally, the Foregone Conclusion Doctrine should not apply in the digital context, where smartphones store a vast amount of personal information. However, even if applied, the

government failed to meet the appropriate burden of reasonable particularity, as it lacked prior knowledge of the phone's possession to DeNolf, the contents inside the phone, and the existence of the incriminating messages sought after.

ARGUMENT

I. The accessing of DeNolf's phone violates his Fifth Amendment rights under the United States Constitution.

A. DeNolf's compelled production of his facial biometric passkey which unlocked his phone satisfies the *Fisher* test.

The Constitution of the United States establishes the right against self-incrimination in the Fifth Amendment when it states "No person shall … be compelled in any criminal case to be a witness against himself." U.S. Const. amend. V. To provide this protection, this Court established a three-prong element test. *Fisher* 425 U.S. at 401. An action or evidence is protected by the Fifth Amendment when the plaintiff proves the following elements: 1. The accused was compelled; and 2. Had to make a testimonial communication; and 3. The communication was incriminating. *Id.*

1. The act of producing DeNolf's facial biometric passkey was compelled, as DeNolf was unable to exercise his Fifth Amendment rights.

The Fifth Amendment protects the right "to remain silent unless he chooses to speak in the unfettered exercise of his own will." *Schmerber* 384 U.S. at 762. In this case, DeNolf's Fifth Amendment rights were violated when law enforcement, exploiting his unconscious state, compelled the production and usage of his facial biometric passkey to unlock his phone and involuntarily involve him in his own investigation. This Court in *Doe* clarified that under the scope of the Fifth Amendment, compulsion is not limited to active participation. Compulsion can arise in passive situations so long as the state forces the production of evidence. *Doe* 487 U.S. at

210. Thus, while asleep, DeNolf was nonetheless compelled to produce his facial biometric passkey, fulfilling the first requisite criteria under the *Fisher* framework.

2. The act of producing DeNolf's facial biometric passkey was incriminating, as it led to the unlocking of his device and its contents which were used for his conviction.

Evidence need not be directly used for conviction to be considered incriminating; it qualifies as such if it serves as a "link in the chain" leading to prosecution. *Hoffman* 341 U.S. at 486, *as cited in Doe*, 487 U.S. at 210. In this case, the timeline is particularly telling; law enforcement placed the phone in front of DeNolf's face, the phone unlocked, incriminating messages were revealed, and law enforcement's review of the messages was promptly followed by DeNolf's arrest. R. 3-4. These messages were presented at trial as evidence to secure a guilty verdict. R. 1. These facts highlight the indirectly incriminating role of DeNolf's production of his facial biometric passkey and unlocking of his phone, and the direct role of the ChatApp messages within the phone used for his conviction, unequivocally affirming their incriminating nature, fulfilling the second requisite criteria under the *Fisher* framework.

3. The act of producing DeNolf's facial biometric passkey was testimonial, as it communicated unknown incriminating information to the government and the government failed to conduct the investigation through their own independent labor.

This Court in *Schmerber* established that compelled sources of real or physical evidence are not protected. *Schmerber v. Cal.,* 384 U.S. 757, 763 (1966). However, *Schmber* clarified that this Court did not prioritize a distinction between physical and non-physical as its primary

criteria, but only as a “helpful framework for analysis” that is “not to be understood… in all instances” because “there will be many cases in which such a distinction is not readily drawn.” *Schmerber,* 384 U.S at 764. Rather, the distinction is whether the suspect is being compelled to serve as mere evidence or whether the suspect is being compelled to disclose or communicate information that might serve as or lead to incriminating evidence. *Doe* 487 U.S. at 211 n.10. Essentially, this Court held that a physical act can still be testimonial when the act is a communication that "itself, explicitly or implicitly, relate[s] a factual assertion or disclose[s] information” as then, the suspect is no longer serving as mere physical evidence. *Id*. at 210.

Under this definition of physical actions being testimonial if communicative, a physical act of producing evidence can qualify as testimonial under the act of production doctrine. *Fisher*, 425 U.S at 410. While the act of production was only officially recognized in *Fisher* where the IRS summoned the accused’s attorneys to produce tax documents, the act of production in terms of the 5th Amendment, whether active or passive, has always existed. *Id*. Starting with the very first case set forth before this Court in 1966, the suspect in *Schmerber* was passively compelled to produce his blood. *Schmerber*, 384 U.S. This Court held that “it is clear that the protection of the privilege reaches an accused's communications, whatever form they might take, and the compulsion of responses which are also communications.” *Schmerber,* 384 U.S. at 763-764. The act of production is not confined to a positive or active act—it occurs whenever information is compelled and produced. In *Schmerber*, the defendant’s blood was drawn to test for alcohol content; while the defendant took no active steps to assist in the drawing of his blood, it was nonetheless a compelled production. Similarly, in this case, while DeNolf did not actively unlock his phone, he was nonetheless passively compelled to produce his facial biometric passkey.

However, in *Schmerber*, the drawing of the defendant's blood was firmly deemed as non-testimonial evidence because the government already knew about the information being revealed during the production of blood, such as the presence of the defendant's blood and its ability to be drawn; thus, the act of production was not communicative. *Id.* at 765. It was only via an independent analysis by the police officer's direction that the incriminating blood-alcohol content was revealed. Thus, "his participation, except as a donor, was irrelevant to the results of the test, which depend on chemical analysis and on that alone." *Id*. This is precisely why the physical nature of the evidence was relevant - because the only information that it communicated during its production was already known information. Thus, a criminal suspect may be compelled to put on a shirt, provide a handwriting exemplar, or make a recording of his voice because these acts of exhibiting such physical characteristics are not the same as a sworn communication by a witness that relates either express or implied assertions of fact or belief. *Pennsylvania v. Muniz*, 496 U.S. 582, 594-598, 110 L. Ed. 2d 528, 110 S. Ct. 2638 (1990), *as cited in Hubbell*, 530 U.S. at 35.

In contrast to productions of mere physical evidence that do not communicate new information, this Court recognized that an act of production could carry implicit assertions that rise to the level of testimony, such as acknowledgment of the documents' existence or the taxpayer's control over them. *Fisher* 425 U.S. at 410-11. However, the act of production in *Fisher* was not testimonial for three key reasons. First, the documents were prepared by accountants, meaning the taxpayers did not create them, and producing them did not imply any assertion about their contents, accuracy, or authenticity. *Id*. at 409. Second, the documents existed independently of the taxpayers' control or creation. *Id.* at 410-11. Third, producing the documents did not require the taxpayers to affirm or validate the truth of their contents. *Id.* at

412-13. Thus, the act of producing the documents in this context was a non-communicative act, rendering it non-testimonial. *Id.* at 412.

Similarly, in *Doe*, the suspect's execution of a consent directive lacked testimonial significance because neither the form nor its execution communicated any factual assertions, implicit or explicit, to the government. *Doe*, 487 U.S. at 215. The form did not acknowledge that an account in a foreign bank existed or that it was controlled by the suspect, nor did it indicate whether any documents or other information relating to the suspect were present at the foreign bank. *Id.* at 215-16. All these cases underscore the critical importance of testimonial significance and its connection to the government's prior knowledge; if the suspect's act of production conveys implicit incriminating information previously unknown, it constitutes testimony. The proper inquiry focuses on the extent of the government's independent knowledge of the evidence's existence, authenticity, and possession. *Hubbell*, 530 U.S. at 32.

Thus, it is necessary to analyze what the government knew prior to DeNolf's production of his facial biometric passkey which unlocked DeNolf's phone. It can be assumed that the government knew DeNolf owned a phone device, that messages were exchanged between DeNolf and Bronner primarily through ChatApp, and that over 47,000 messages had been sent or received. R. 3. However, the government did not know: (1) whether the X-Phone found in the public area belonged to DeNolf (possession); (2) whether the X-Phone was secured with a security feature (existence); (3) and if so, what type of security feature was utilized (existence); or (4) the authenticity of the phone and its contents (authenticity). Each of these pieces of information was conveyed when DeNolf was forced to produce his facial biometric passkey which unlocked DeNolf's phone.

The presence of a security feature, particularly one in the form of biometrics, is crucial in determining testimonial significance. Successful unlocking of a device through a biometric feature inherently communicates that DeNolf was the possessor of the phone and that the contents inside, specifically the ChatApp messages, are authentic. While a device without a security feature cannot convey information about ownership or authenticity, as anyone can access and use the phone to create or download files, and a device with passwords or pattern locks communicates limited information since such security codes could easily be shared, a device with biometric security features convey certainty of ownership and authenticity because access is restricted to the device owner alone. This is because biometrics are uniquely tied to one person and by nature cannot be shared. Given these distinctions, law enforcement should have been aware that the phone in question was in the possession of DeNolf and that DeNolf's phone had a security feature, specifically facial biometrics. Yet, law enforcement failed to confirm this, as demonstrated by their actions: "put[ting] the phone to DeNolf's face" to "check[] to see if the phone was DeNolf's." R. 4. Moreover, the X-Phone supports multiple security options, including facial biometrics, touch ID, and alpha-numeric passcodes, further complicating the government's assumptions. R. 4. No independent analysis was conducted to uncover these details, nor did the government possess prior knowledge of the existence or content of the chat messages.

Unlike the aforementioned cases where the act of production did not reveal new information, the unlocking of DeNolf's phone instantaneously communicated implicit facts that were instrumental in securing his conviction. This unique scenario underscores the testimonial nature of DeNolf's compelled production of his facial biometric passkey and the unlocking of his phone, placing it firmly under the protections of the Fifth Amendment and fulfills the third

requisite criteria under the *Fisher* framework.

Additionally, the government completely relied on DeNolf to implicitly communicate incriminating information about his own conviction, contradicting the foundational principle that "our accusatory system of criminal justice demands that the government seeking to punish an individual produce the evidence against him by its own independent labors, rather than by the cruel, simple expedient of compelling it from his own mouth." *Miranda v. Arizona,* 384 U.S. 435, 460 (1966), *as cited in Schmerber*, 384 U.S. at 762. The government is obligated to locate evidence "by the independent labor of its officers." *Estelle v. Smith,* 451 U.S. 454, 462 (1981), *as cited in Doe*, 487 U.S. at 215. However, the investigation in DeNolf's case was fully dependent on DeNolf's forced participation. This direct violation of the principle further underscores the testimonial nature of the compelled act, reinforcing its classification under the Fifth Amendment's protections.

In *Fisher*, the government already knew who possessed the tax documents, and it could independently verify their existence and authenticity through the accountants who prepared them. *Fisher*, 425 U.S. at 411. Similarly, in *Schmerber*, the government independently analyzed the contents of the defendant's blood to determine guilt. *Schmerber*, 384 U.S. at 765. In *Doe*, the directive was carefully constructed as a hypothetical, allowing the government to gather further information independently. *Doe*, 487 U.S. at 215. However, in *Hubbell*, the suspect's production of documents was testimonial because the government did not demonstrate that it had any prior knowledge of "either the existence or the whereabouts of the 13,120 pages of documents ultimately produced by the respondent." *Id.* at 45. This type of investigation amounted to a classic "fishing expedition" as it forced the suspect to guide the government to information and

evidence they merely suspected might exist, which this Court held as testimonial. *Id.* at 42.

Like *Hubbell*, law enforcement in DeNolf's case conducted a classic "fishing expedition" by relying entirely on him to produce his facial biometric passkey and provide access to incriminating evidence. The record does not state that law enforcement began their investigation seeking a particular kind of evidence. Without any clear objective of what evidence to find, law enforcement just so happened to discover incriminating evidence by relying on DeNolf's very own production of his facial biometrics passkey, when his phone was protected by an unhackable biometric safety feature requiring his personal face to unlock the phone. R. 4. Not only that, the ChatApp messages at issue were exclusively stored on DeNolf's phone, as they had been erased from Bronner's device. R. 3. Despite the theoretical availability of alternative investigative methods, such as subpoenaing the ChatApp company for records, law enforcement chose instead to override DeNolf's constitutional protections by forcing him to be the primary source of his own conviction.

While not binding, *Seo* noted that "there are several ways law enforcement can procure evidence from smartphones without infringing on an individual's Fifth Amendment rights." *Seo v. State*, 148 N.E.3d 952, 962 (Ind. 2020). Courts must balance law enforcement interests with constitutional protections, as "courts have an obligation to safeguard constitutional rights and can't allow those rights to be diminished merely due to the advancement of technology." *In re Search of a Residence in Oakland*, 354 F. Supp. 3d 1010, 1014 (N.D. Cal. 2019). This dependency on the compelled use of DeNolf's face to bypass the phone's security feature, without any independent labor to obtain the messages, constitutes a clear violation of his Fifth Amendment rights and fulfills the third requisite criteria under the *Fisher* framework.

B. The Foregone Conclusion Doctrine should not apply, but even if applied, the government fails to meet the burden of reasonable particularity.

The Foregone Conclusion Doctrine permits the government to compel the production of evidence only when the evidence "adds little or nothing to the sum total of the Government's information." *Fisher* 425 U.S. at 411. To satisfy this standard, the government must demonstrate with reasonable particularity that it already knows the existence, possession, and authenticity of the evidence in question. *Hubbell*, 530 U.S. at 33

1. A heightened standard beyond reasonable particularity is necessary in the digital context.

Lower courts have raised concerns about distinguishing between passwords and biometrics, noting that such distinctions create "inconsistent approaches based on form rather than substance" and that this distinction "becomes even more problematic when considering that, at least in some cases, a biometric device lock can be established only after a passcode is created, calling into question the testimonial/nontestimonial distinction in this context." *State v. Andrews*, 243 N.J. 447, 480 (N.J. 2020).

Additionally, as Justice Brennan observed in *Fisher*, the Fifth Amendment's history was "not bound by rigid definition" and the doctrine must account for evolving contexts and technologies. *L. Levy, Origins of the Fifth Amendment* 428 (1968), *as cited in Fisher*, 425 U.S. at 417 (Brennan, J., concurring); *Doe* 487 U.S. at 209. This historical perspective underscores the Amendment's liberal construction to prevent "stealthy encroachment" or "gradual depreciation" of its protections, whether by courts or overzealous enforcement. *Gouled v. United States*, 255 U.S. 298, 304 (1921); *Maness v. Meyers, 419 U.S. 449, 461* (1975) *as cited in Fisher*, 425 U.S at

417 (Brennan, J,. concurring). History and principle, not mere mechanical application of text, have been the foundation of the Fifth Amendment's protections. *Id.*

With these principles in mind, this Court must account for the modern reality of smartphones as pervasive repositories of personal information. Smartphones now "contain in digital form the combined footprint of what has been occurring socially, economically, personally, psychologically, spiritually, and sometimes even sexually, in the owner's life." *Riley v. California*, 573 U.S. 373, 393 (2014), as cited in *Seo*, 109 N.E.3d at 960. Their storage capacity is vast, with even inexpensive models capable of holding millions of documents—far more than the 13,120 pages addressed in *Hubbell*. *Id.* at 960. Not only, the court also emphasized that the breadth of a smartphone search "exposes far more than the most exhaustive search of a house" and is indispensable to human life. *Riley,* 573 U.S, 393, *as cited in, In re Search of a Residence in Oakland*, 354 F. Supp. 3d 1010, 1017 (N.D. Cal. 2019).

Digital devices require careful judicial consideration that does not "uncritically extend existing precedents." *Carpenter v. United States*, 138 S. Ct. 2206, 2222, 201 L. Ed. 2d 507 (2018) *as cited in Seo* N.E.3d 418 at 961. Justice Marshall's concurrence in *Fisher* noted that the more personal and private the evidence, the less permissible it is for the government to assume its existence without concrete proof. *Fisher*, 425 U.S. at 430 (Marshall, J., concurring). A deeply private item, such as a password or private communications, cannot be presumed to exist in the absence of evidence. *Id*. The contents of DeNolf's phone, including his chat messages, are among the most personal and private forms of evidence. Unlike in *Fisher*, the only instance where the Foregone Conclusion Doctrine was successfully invoked, the evidence in the present case are not business records or public documents. They are the product of DeNolf's private thoughts, actions, and communications which were secured by his biometric security. Deeply

personal and private evidence cannot be presumed to exist without concrete proof, and the unique nature of digital devices demands a heightened standard that exceeds mere reasonable particularity. Thus, the Foregone Conclusion Doctrine should not apply.

2. Even if applied, the government failed to establish reasonable particularity regarding the existence, possession, and authenticity of the phone and its contents.

While the Foregone Conclusion Doctrine should not be applied, the government nonetheless fails to meet the appropriate burden of reasonable particularity. In *Fisher*, this Court upheld compelled, incriminating, and testimonial production of evidence because the government could successfully demonstrate with reasonable particularity that they had independent knowledge of the documents' existence and location. *Fisher*, 425 U.S. at 411. Thus, the act of production was not a question of testimony, but one of surrender, as the documents merely confirmed facts already known to the government and did not communicate new information. *In re Harris*, 221 U.S. 274 (1911), as cited in, *Id*.

In this case, however, the government lacked prior knowledge of DeNolf's possession of the phone, its authenticity, or the existence of the ChatApp messages, particularly given that law enforcement placed the X-Phone to DeNolf's face "checking to see if it was DeNolf's" and also because ChatApp messages self-erase. R. 3-4. The government cannot compel surrender, as it has failed to first meet its burden of proving the foregone conclusion. If the government cannot demonstrate prior knowledge of the evidence's existence, location, and possession, the act becomes testimonial as it forces the accused to communicate information that the government could not independently obtain. The government has failed to satisfy its burden of establishing

reasonable particularity regarding the existence of the messages, as well as the possession and authenticity of the phone and cannot meet the burden of the Foregone Conclusion Doctrine.

CONCLUSION

For the foregoing reasons, the Petitioner respectfully requests that this Court reverse the decision of the Supreme Court of the State of Olympus.

Respectfully Submitted,

Counsel for Petitioner